

CV-26-002812 OGBOGU, KENNETH vs ASHIEGBU, LINDA – Plaintiff's Motion for an Order Permitting Repossession of Mercedes Benz S550 - DENIED WITHOUT PREJUDICE.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Plaintiff has presented evidence supporting the probable validity of his claim to possession, including his declaration concerning the parties' oral agreement and documentary evidence that Plaintiff purchased, financed, and remains the registered owner of the vehicle. Plaintiff's evidence indicates that Defendant was permitted to use the vehicle on the condition that she make the associated payments and refinance the loan, and that she allegedly failed to perform those obligations.(Code of Civil Procedure section 512.040 and 512.050). The present application is, however, deficient in omitting the required statement that the property is not held under a tax, assessment, fine, or execution levy, subject to the statutory qualifications (Code of Civil Procedure section 512.010(b)(5). The statutory notice which must advise Defendant that a writ will issue if the Court finds Plaintiff's claim probably valid and the other statutory requirements established is also absent. (Code of Civil Procedure section 512.040 and 512.050). Further, the information required to be included in the Notice of Application and Hearing is absent. (Code of Civil Procedure section 512.040 (b) –(d). Additionally, the present record does not establish that the undertaking requirements referenced in Code of Civil Procedure section 512.060 have been satisfied nor does Plaintiff address the undertaking issue at all. Accordingly, Plaintiff's motion is denied without prejudice to a renewed application complying with Code of Civil Procedure sections 512.010 through 512.060 and the applicable undertaking requirements. The following are the tentative rulings for cases calendared before Commissioner Richard D. Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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The present application is, however, deficient in omitting the required statement that the property is not held under a tax, assessment, fine, or execution levy, subject to the statutory qualifications (Code of Civil Procedure section 512.010(b)(5). The statutory notice which must advise Defendant that a writ will issue if the Court finds Plaintiff's claim probably valid and the other statutory requirements established is also absent. (Code of Civil Procedure section 512.040 and 512.050). Further, the information required to be included in the Notice of Application and Hearing is absent. (Code of Civil Procedure section 512.040 (b) –(d).

Additionally, the present record does not establish that the undertaking requirements referenced in Code of Civil Procedure section 512.060 have been satisfied nor does Plaintiff address the undertaking issue at all.

Accordingly, Plaintiff's motion is denied without prejudice to a renewed application complying with Code of Civil Procedure sections 512.010 through 512.060 and the applicable undertaking requirements.

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There are no tentative rulings for Department 19

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